

## SOLVED PRACTICE WORKBOOK

# Rights and Liabilities of the Government - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

## Rights and Liabilities of the Government

REFRESHED TEACHING NAVIGATION — BASIC/CORE FIRST

01

### CORE PROPOSITION

Governmental legal personality separates public obligations from

02

### ARTICLE MAP

Articles 294-297 govern property continuity, Article 298 capacity,

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### PROPERTY, SUCCESSION AND OWNERLESS ASSETS

Constitutional commencement succession, bona vacantia rules and

04

### GOVERNMENT CONTRACTS: ARTICLE 299

A valid commitment must use the constitutional head's name,

05

### SUITS AND TORT LIABILITY: ARTICLE 300

Private tort requires ordinary civil ingredients, while constitutional tort

06

### PUBLIC-OFFICIAL PROTECTION: DO NOT MIX THE SOURCES

Article 361, Article 299(2), CPC notice, BNSS sanction and evidence

07

### ACCOUNTABILITY LOGIC

Article 300A safeguards property, evidence and RTI rules balance

08

### MUST-KNOW FACTS

The recall set covers Articles 294-300A, contract form, proper parties,

*Original deterministic study visual; labels are explanatory, not textual quotations.*

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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# Rights and Liabilities of the Government - Solved Practice Workbook

## BASIC MCQS / REMEDIATION

### Original MCQs 1-48 - hard, varied and source-controlled

#### OM1. Which sequence correctly maps Articles 294-300A?

- A. 294-295 succession; 296 ownerless property; 297 maritime resources; 298 capacity; 299 contracts; 300 suits; 300A property deprivation.
- B. 294-297 Fundamental Rights; 298 emergency; 299 amendment; 300 elections.
- C. 294 contracts; 295 suits; 296 trade; 297 torts; 298 property right.
- D. 294 succession; 295 maritime resources; 296 contracts; 297 suits; 300A only citizens.

**Answer: A**

**Explanation:** The adjacent provisions have distinct subjects; Article 300A is outside the Articles 294-300 liability sequence.

#### OM2. Article 296 primarily concerns which category?

- A. Compensation for Fundamental-Right violations.
- B. Escheat, lapse and bona vacantia.
- C. Government contracts and arbitration.
- D. Maritime minerals in the exclusive economic zone.

**Answer: B**

**Explanation:** Article 296 governs ownerless or reverting property and its Union/State vesting.

#### OM3. What is the safest statement about Article 297?

- A. It governs State succession at constitutional commencement.
- B. It constitutionalises the numerical breadth of every maritime zone.
- C. It vests specified maritime lands, minerals and resources in the Union, while zone limits come from parliamentary law.
- D. It transfers every coastal land parcel to the Union.

**Answer: C**

**Explanation:** The Constitution creates the vesting rule; statutory law supplies detailed maritime-zone limits.

#### OM4. Article 298 does which of the following?

- A. Makes the President personally liable for government trade.
- B. Dispenses with Article 299 formalities.
- C. Creates blanket immunity for public enterprises.
- D. Extends Union and State executive power to trade, business, property and contracts, subject to constitutional competence controls.

**Answer: D**

**Explanation:** Article 298 grants capacity, not immunity or authority to ignore Article 299.

#### OM5. Which is indispensable under Article 299?

- A. Expression in the President/Governor's name, execution on that behalf, and execution by an authorised person in the prescribed manner.
- B. Only cabinet approval, even without constitutional form.
- C. Oral acceptance followed by later audit.
- D. Only the signature of any gazetted officer.

**Answer: A**

**Explanation:** All three constitutional formalities protect the public exchequer and identify authorised commitment.

**OM6. What follows from Article 299(2)?**

- A. Every unauthorised assurance binds the treasury.
- B. The President/Governor and authorised executant are not personally liable for a valid official contract.
- C. The Union or State cannot be sued on the contract.
- D. The provision bars judicial review of procurement.

**Answer: B**

**Explanation:** Personal protection of office-holders does not erase governmental contractual liability.

**OM7. A purported government contract fails Article 299 form, but the State knowingly enjoys a lawful non-gratuitous benefit. What is the correct analysis?**

- A. The defective contract becomes valid automatically.
- B. The supplier must always receive the promised contract price.
- C. The contract claim may fail, while an independent Contract Act section 70 restitution claim may be proved.
- D. Article 300A validates the bargain.

**Answer: C**

**Explanation:** Restitution reverses unjust enrichment; it neither validates the defective contract nor fixes contract-price recovery.

**OM8. Which case is the standard restitution anchor for a benefit accepted by government despite defective contract form?**

- A. State of U.P. v. Raj Narain (1975).
- B. Nilabati Behera v. State of Orissa (1993).
- C. Kasturi Lal v. State of Uttar Pradesh (1964).
- D. B.K. Mondal & Sons (1961).

**Answer: D**

**Explanation:** B.K. Mondal & Sons (1961) explains the independent non-gratuitous-benefit route.

**OM9. Under Article 300 and CPC section 79, the proper defendant in a Union matter is generally:**

- A. The Union of India.
- B. The concerned minister personally.
- C. The Cabinet Secretariat.
- D. The President personally.

**Answer: A**

**Explanation:** Article 300 and CPC section 79 use the Union of India as the juristic party.

**OM10. What is CPC section 80's ordinary function?**

- A. It grants the President criminal immunity.
- B. It requires specified prior notice before covered suits against government or public officers, subject to an urgent-relief route.
- C. It validates defective Article 299 contracts.
- D. It abolishes governmental tort liability.

**Answer: B**

**Explanation:** Section 80 is a procedural notice provision, not substantive sovereign immunity.

**OM11. Which statement about CPC section 80(2) is correct?**

- A. It applies only to criminal prosecutions.

- B. It makes two-month notice a constitutional requirement.
- C. With court leave, urgent or immediate relief may be sought without prior notice, but relief follows an opportunity to government to show cause.
- D. It eliminates judicial control over urgent suits.

**Answer: C**

**Explanation:** The subsection creates a controlled exception for urgency.

**OM12. What was the broad significance of P & O Steam Navigation (1861)?**

- A. It created constitutional tort under Article 32.
- B. It interpreted Article 300A's seven safeguards.
- C. It established RTI's public-interest override.
- D. It supplied the colonial sovereign/non-sovereign-function distinction later used in State-tort analysis.

**Answer: D**

**Explanation:** The case is historical groundwork, not the modern constitutional-compensation doctrine.

**OM13. Which pair is correctly matched?**

- A. State of Rajasthan v. Vidyawati (1962) - liability for ordinary operational negligence.
- B. Kasturi Lal v. State of Uttar Pradesh (1964) - complete abolition of sovereign immunity.
- C. Nilabati Behera v. State of Orissa (1993) - Article 299 contract formalities.
- D. N. Nagendra Rao & Co. (1994) - expansion of blanket immunity.

**Answer: A**

**Explanation:** State of Rajasthan v. Vidyawati (1962) is the classic vehicle-negligence liability decision.

**OM14. What is the exam-safe use of Kasturi Lal v. State of Uttar Pradesh (1964)?**

- A. It converted right to property into a Fundamental Right.
- B. It represents the older police-sovereign immunity line, now strongly narrowed and criticised.
- C. It proves that police action can never attract public-law compensation.
- D. It held CPC notice unnecessary in every case.

**Answer: B**

**Explanation:** The case must be placed in a trajectory rather than stated as an unlimited current rule.

**OM15. N. Nagendra Rao & Co. (1994) is best used for which proposition?**

- A. Article 299 is directory rather than mandatory.
- B. The State cannot conduct business.
- C. Broad sovereign immunity is untenable in a welfare State and any residue is confined to narrow inalienable functions.
- D. Every official is personally liable for every policy decision.

**Answer: C**

**Explanation:** The judgment narrows immunity without supplying a universal no-immunity formula.

**OM16. Which route principally vindicates a Fundamental-Right violation by State action?**

- A. Only a private contract action.
- B. Article 299 restitution.
- C. Escheat under Article 296.
- D. Constitutional tort or public-law compensation under writ jurisdiction.

**Answer: D**

**Explanation:** Public-law compensation is analytically distinct from ordinary private damages.

**OM17. Which case most directly anchors public-law compensation for a Fundamental-Right violation?**

- A. Nilabati Behera v. State of Orissa (1993).
- B. K.T. Plantation (2011).
- C. B.K. Mondal & Sons (1961).
- D. Mulamchand v. State of Madhya Pradesh (1968).

**Answer: A**

**Explanation:** Nilabati Behera v. State of Orissa (1993) distinguishes constitutional compensation from private tort damages.

**OM18. State vicarious liability ordinarily requires attention to:**

- A. Only whether the function was labelled sovereign.
- B. The employee's tort, course-of-employment nexus, causation, statutory protection and remedy.
- C. Only the officer's designation.
- D. Only proof of public expenditure.

**Answer: B**

**Explanation:** Institutional liability and personal consequences require a fact- and source-specific analysis.

**OM19. Which statement about personal and State liability is correct?**

- A. Official status converts mala fides into protected action.
- B. Personal fault always excludes institutional responsibility.
- C. State liability can coexist with disciplinary, criminal or personal civil consequences for the official.
- D. State liability automatically extinguishes personal fault.

**Answer: C**

**Explanation:** Different liabilities serve different purposes and may coexist.

**OM20. Article 361 principally protects:**

- A. All official documents from disclosure.
- B. The State treasury from contractual claims.
- C. Every civil servant from every suit.
- D. The President and Governor through specified personal immunities while leaving governmental action reviewable.

**Answer: D**

**Explanation:** Office-holder protection must not be mistaken for governmental immunity.

**OM21. Which source governs personal contract protection for an authorised government signatory?**

- A. Article 299(2).
- B. CPC section 80.
- C. BSA section 129.
- D. Article 361.

**Answer: A**

**Explanation:** The source firewall matters: contract, head-of-State, procedure and evidence protections differ.

**OM22. BNSS section 218 is relevant to:**

- A. Disclosure of State-affairs records.
- B. Previous sanction before cognizance of specified official-duty offences involving protected judges or public servants, subject to statutory exceptions.
- C. Automatic compensation for custodial wrongs.
- D. Civil notice before every contract suit.

**Answer: B**

**Explanation:** Criminal-procedure sanction is separate from civil notice and constitutional immunity.

**OM23. What is Article 300A's status?**

- A. A Fundamental Right available only to citizens.
- B. Only an ordinary statutory right.
- C. A constitutional right available to every person, outside Part III.
- D. A Directive Principle enforceable only by legislation.

**Answer: C**

**Explanation:** Article 300A is constitutional but not Fundamental, and its text uses 'person'.

**OM24. Which is necessary for deprivation under Article 300A?**

- A. A presidential ordinance in every case.
- B. Consent of the property owner in every acquisition.
- C. A departmental file noting alone.
- D. Authority of law rather than unsupported executive action.

**Answer: D**

**Explanation:** Lawful authority and constitutionally fair acquisition procedure are essential.

**OM25. K.T. Plantation is correctly associated with:**

- A. Public purpose and the rejection of arbitrary, confiscatory or illusory-compensation deprivation.
- B. Official-secrets privilege.
- C. Article 361 criminal immunity.
- D. Absolute market-value compensation in every case.

**Answer: A**

**Explanation:** The judgment qualifies, rather than absolutises, compensation under Article 300A.

**OM26. Vidya Devi is best cited when:**

- A. A valid Article 299 contract is breached.
- B. The executive forcibly occupies property without lawful acquisition and compensation.
- C. A Governor claims immunity during office.
- D. Ownerless property vests under Article 296.

**Answer: B**

**Explanation:** The case treats unsupported State dispossession as an Article 300A violation.

**OM27. Which set reproduces the 2024 Article 300A procedural framework?**

- A. Notice, arrest, sanction, prosecution, conviction, sentence and mercy.
- B. Possession, prescription, secrecy, urgency, waiver, immunity and estoppel.
- C. Notice, hearing, reasoned decision, public purpose, fair compensation/restitution, efficient process and conclusion.
- D. Contract, restitution, tort, writ, appeal, review and pardon.

**Answer: C**

**Explanation:** Bimal Kumar Shah organises seven minimum property sub-rights.

**OM28. What does the 'right of conclusion' in the Bimal Kumar Shah framework emphasise?**

- A. Compensation is unnecessary after notice.
- B. Every acquisition must end in return of the land.
- C. Courts may never review delay.
- D. Acquisition proceedings must reach lawful completion rather than leave the owner in indefinite limbo.

**Answer: D**

**Explanation:** The safeguard addresses completion and legal finality of the acquisition process.

**OM29. BSA section 129 concerns:**

- A. Unpublished official records relating to affairs of State.
- B. Government-contract execution.
- C. Civil-suit notice.
- D. Right-to-property compensation.

**Answer: A**

**Explanation:** It is an evidentiary privilege provision, not a general RTI exemption.

**OM30. BSA section 130 concerns:**

- A. Maritime resources.
- B. Official communications whose compelled disclosure would injure public interest.
- C. Union-State property succession.
- D. Arbitration awards.

**Answer: B**

**Explanation:** The section addresses official confidence in evidence law.

**OM31. State of U.P. v. Raj Narain supports which proposition?**

- A. Every official document must always be disclosed.
- B. Article 299 form is optional.
- C. State-affairs secrecy is not absolute; public interest, right to know and judicial scrutiny matter.
- D. RTI section 8 was unconstitutional.

**Answer: C**

**Explanation:** The decision rejects an unreviewable secrecy claim while retaining public-interest balancing.

**OM32. S.P. Gupta is safely used for:**

- A. A complete tort-liability code.
- B. A rule validating oral government contracts.
- C. An absolute disclosure command regardless of national security.
- D. A presumption favouring open government, qualified by document-specific public-interest harm.

**Answer: D**

**Explanation:** Open government is strong but not absolute.

**OM33. RTI section 8(1)(a) protects information where disclosure would prejudicially affect specified interests including:**

- A. Sovereignty and integrity, security, strategic or scientific/economic interests and foreign relations.
- B. All cabinet-related information forever.
- C. Every record marked confidential by an officer.
- D. Every embarrassing administrative fact.

**Answer: A**

**Explanation:** The exemption is harm- and interest-specific, not label-based.

**OM34. What is the function of RTI section 8(2)?**

- A. It repeals Article 300A.
- B. It permits disclosure where public interest outweighs the harm to protected interests.
- C. It creates blanket secrecy for affairs of State.
- D. It makes CPC notice optional.

**Answer: B**

**Explanation:** The public-interest override is central to calibrated disclosure.

**OM35. RTI section 22 means:**

- A. Every prosecution under secrecy law automatically fails.
- B. Official Secrets Act is wholly repealed.
- C. The RTI Act prevails over inconsistent provisions, including the Official Secrets Act, subject to RTI's own scheme.
- D. Evidence privilege and RTI become identical.

**Answer: C**

**Explanation:** Override resolves inconsistency; it does not erase every other legal field.

**OM36. Which comparison is correct?**

- A. An RTI denial conclusively binds every court.
- B. Both are the same constitutional immunity.
- C. BSA privilege automatically defeats section 8(2).
- D. Evidence privilege controls production in adjudication; RTI exemptions control access requests under a separate statute.

**Answer: D**

**Explanation:** The legal setting, test, decision-maker and review route differ.

**OM37. A procurement dispute challenges arbitrary blacklisting rather than payment under the contract. The primary constitutional route is:**

- A. Judicial review of legality, fairness and non-arbitrariness, without converting review into ordinary damages adjudication.
- B. Only section 70 restitution.
- C. Article 361 personal immunity.
- D. Article 296 escheat.

**Answer: A**

**Explanation:** Contractual facts can have a distinct public-law legality dimension.

**OM38. Which procurement chain is constitutionally sound?**

- A. Secret criteria; oral award; unauthorised execution; retrospective reasons.
- B. Need and sanction; transparent criteria; fair competition; reasoned award; Article 299 execution; monitoring, payment and audit.
- C. Ministerial preference; automatic blacklisting; no hearing.
- D. Lowest price alone; no quality assessment; no audit.

**Answer: B**

**Explanation:** Equality, authority, reasoned choice and fiscal accountability operate together.

**OM39. Government arbitration is validly founded on:**

- A. Article 300A alone.
- B. A court order rewriting a defective contract.
- C. An authorised and Article 299-compliant agreement containing an arbitration clause.
- D. Any oral assurance by an official.

**Answer: C**

**Explanation:** Arbitration cannot cure absence of authority or mandatory constitutional form.

**OM40. Which statement about arbitration and public law is correct?**

- A. Every procurement dispute must be arbitrated.

- B. Arbitration waives every constitutional objection.
- C. An arbitral clause removes audit duties.
- D. Arbitration decides the covered private-law dispute; a separate public-law illegality may remain judicially reviewable.

**Answer: D**

**Explanation:** Forum selection does not erase distinct constitutional controls.

**OM41. Later State reorganisation liabilities are allocated principally by:**

- A. The governing reorganisation statute, agreements and transfer instruments.
- B. The President's personal discretion.
- C. RTI section 22.
- D. A universal formula in Article 295.

**Answer: A**

**Explanation:** Articles 294-295 establish commencement continuity, not a timeless allocation formula.

**OM42. Which statement best describes government legal personality?**

- A. It prevents succession of liabilities.
- B. It ensures institutional continuity and suability while separating public obligations from office-holders' personal estates.
- C. It makes ministers personally own public assets.
- D. It places government outside ordinary law.

**Answer: B**

**Explanation:** Juristic continuity enables both administration and accountability.

**OM43. India's present State-tort framework is best described as:**

- A. Identical to constitutional tort.
- B. Abolished by Article 300.
- C. Case-law-heavy and lacking a single comprehensive enacted State-tort code.
- D. Fully codified by the First Law Commission Report.

**Answer: C**

**Explanation:** The 1956 Law Commission report was recommendatory; it did not itself become legislation.

**OM44. What is the strongest reform case for a State-tort statute?**

- A. Make every official error strict personal liability.
- B. Replace every writ with arbitration.
- C. Restore blanket immunity for all official acts.
- D. Clarify liability, narrow exceptional immunity, preserve rights compensation and improve institutional risk management.

**Answer: D**

**Explanation:** Reform should combine compensation, predictable limits and sound administration.

**OM45. Which answer structure best fits a sovereign-immunity question?**

- A. Article 300 baseline; colonial distinction; Kasturi Lal v. State of Uttar Pradesh (1964); narrowing cases; constitutional tort; qualified reform verdict.
- B. Article 300A only; discuss property prices.
- C. List cases without doctrinal movement or remedy distinction.
- D. Article 361 only; conclude complete immunity.

**Answer: A**

**Explanation:** A trajectory plus remedy firewall answers both doctrine and current accountability.

**OM46. Which answer structure best fits a government-contract question?**

- A. Only Contract Act offer and acceptance.
- B. Article 298 capacity; Article 299 form; personal protection; defective-contract consequence; restitution distinction; accountability verdict.
- C. Only procurement policy without constitutional form.
- D. Article 300A; RTI; emergency powers.

**Answer: B**

**Explanation:** The structure moves from constitutional capacity to validity and remedy.

**OM47. Which statement properly qualifies public-law compensation?**

- A. It is punitive damages in every case.
- B. It is available only to citizens.
- C. It vindicates constitutional rights but does not replace every fact-intensive private tort action.
- D. It requires a valid Article 299 contract.

**Answer: C**

**Explanation:** Public and private remedies can coexist but have different purposes and ingredients.

**OM48. Which source firewall is accurate?**

- A. They are all forms of sovereign tort immunity.
- B. They all apply only to the President.
- C. They all bar review of governmental action.
- D. Article 361, Article 299(2), CPC section 80, BNSS section 218 and BSA sections 129-130 create different protections.

**Answer: D**

**Explanation:** Naming the precise source prevents blanket-immunity errors.

## **PYQS AND ANSWER PRACTICE**

### **Verified supporting Prelims PYQs**

## PYQ 1 - 2021 Prelims GS-I Q92

**Question:** What is the position of the Right to Property in India?

- A. Legal right available to citizens only
- B. Legal right available to any person
- C. Fundamental Right available to citizens only
- D. Neither Fundamental Right nor legal right

**Answer: B. Article 300A uses "person." The right is constitutional but outside Part III; the offered answer calls it a legal right available to any person.**

**Demand decoding:** Treat "What is the position of the Right to Property in India? - A. Legal right available to..." as a definition, category, constitutional boundary, institution, mechanism and source-date-status problem. Test each statement.

**Detailed examiner-grade model answer:**

**Introduction and thesis:** The answer must resolve the sociological demand in "What is the position of the Right to Property in India? - A. Legal right available to citizens only - B. Legal right available to any person - C....".

**Analytical body:**

1. **Claim and named evidence:** C. Fundamental Right available to citizens only **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Answer: B. Article 300A uses "person." The right is constitutional but outside Part III; the offered answer calls it a legal right available to any person. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** The answer must resolve the sociological demand in "What is the position of the Right to Property in India? - A. Legal right available to citizens only - B. Legal right available to any person - C....".

**Executable exam-length answer / compression plan:** Fix the comparison axis; separate social category from legal status, right from institution and scheme from outcome; test the closest homogenisation, causation or stale-data distractor.

**Why this earns marks:** It prevents a familiar label or aggregate statistic from replacing the exact concept, institutional mandate, mechanism or evidence status.

**How to improve this answer:** For "What is the position of the Right to Property in India? - A. Legal right available to...", state why the nearest distractor fails on definition, group variation, causation, constitutional boundary, date or status.

## PYQ 2 - 2025 Prelims GS-I Q59

**Question:** With reference to the Indian polity, consider the following statements:

I. The Governor of a State is not answerable to any court for the exercise and performance of the powers and duties of his/her office. II. No criminal proceedings shall be instituted or continued against the Governor during his/her term of office. III. Members of a State Legislature are not liable to any proceedings in any court in respect of anything said within the House.

Which of the statements given above are correct?

- A. I and II only
- B. II and III only
- C. I and III only
- D. I, II and III

**Answer: D. Statements I-II track Article 361 and statement III tracks Article 194(2). The question tests exact personal/legislative immunities, not blanket State immunity.**

**PYQ boundary:** No direct Mains GS-II question centrally demanding Articles 294-300 was located in the routed 2018-2025 ledgers. The two questions above are included as supporting, exact Prelims routes; the original Mains set supplies future-demand readiness.

### Original solved Mains practice

**Demand decoding:** Treat "With reference to the Indian polity, consider the following statements: I. The Governor of a..." as a definition, category, constitutional boundary, institution, mechanism and source-date-status problem. Test each statement.

#### Detailed examiner-grade model answer:

**Introduction and thesis:** The answer must resolve the sociological demand in "With reference to the Indian polity, consider the following statements: I. The Governor of a State is not answerable to any court for the exercise..."

#### Analytical body:

1. **Claim and named evidence:** I. The Governor of a State is not answerable to any court for the exercise and performance of the powers and duties of his/her office. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** II. No criminal proceedings shall be instituted or continued against the Governor during his/her term of office. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** III. Members of a State Legislature are not liable to any proceedings in any court in respect of anything said within the House. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Which of the statements given above are correct? **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Answer: D. Statements I-II track Article 361 and statement III tracks Article 194(2). The question tests exact personal/legislative immunities, not blanket State immunity. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** The answer must resolve the sociological demand in "With reference to the Indian polity, consider the following statements: I. The Governor of a State is not answerable to any court for the exercise...".

**Executable exam-length answer / compression plan:** Fix the comparison axis; separate social category from legal status, right from institution and scheme from outcome; test the closest homogenisation, causation or stale-data distractor.

**Why this earns marks:** It prevents a familiar label or aggregate statistic from replacing the exact concept, institutional mandate, mechanism or evidence status.

**How to improve this answer:** For "With reference to the Indian polity, consider the following statements: I. The Governor of a...", state why the nearest distractor fails on definition, group variation, causation, constitutional boundary, date or status.

### M1 - 10 marks, 150 words

**Question:** Explain the constitutional scheme governing government contracts.

**Demand decoding:** Identify the controlling provisions and remedy, explain the doctrinal movement or mechanism, preserve source distinctions and end with a qualified verdict.

**Model solution:** Articles 298 and 299 separate **capacity** from **valid commitment**. Article 298 permits the Union and States to trade, hold or dispose of property and make contracts, subject to constitutional competence. Article 299 then requires the contract to be expressed in the President or Governor's name, executed on that behalf and executed by an authorised person in the prescribed manner. These mandatory safeguards authenticate public commitments and protect the exchequer from informal assurances. Article 299(2) protects the constitutional head and authorised executant from personal liability; it does not immunise the Union or State. If form fails, the purported contract may be unenforceable, but Contract Act section 70 can independently require restitution where government lawfully enjoys a non-gratuitous benefit. Thus public contracting combines executive capacity, formal authority and an anti-unjust-enrichment safety valve.

**Why this earns marks:** It distinguishes capacity, form, personal protection and restitution with the correct provisions.

**How to improve this answer:** Add B.K. Mondal & Sons (1961) only after stating all three section 70 ingredients; never call restitution validation.

**Compression:** Use six moves: Article 298 -> three Article 299 formalities -> 299(2) -> defect -> section 70 -> verdict.

#### Detailed examiner-grade model answer:

**Introduction and thesis:** Articles 298 and 299 separate **capacity** from **valid commitment**. Article 298 permits the Union and States to trade, hold or dispose of property and make contracts, subject to constitutional competence. Article 299 then requires the contract to be expressed in the President or Governor's name, executed on that behalf and executed by an authorised person in the prescribed manner. These mandatory safeguards authenticate public commitments and protect the exchequer from informal assurances. Article 299(2) protects the constitutional head and authorised executant from personal liability; it does not immunise the Union or State. If form fails, the purported contract may be unenforceable, but Contract Act section 70 can independently require restitution where government lawfully enjoys a non-gratuitous benefit. Thus public contracting combines executive capacity, formal authority and an anti-unjust-enrichment safety valve.

#### Analytical body:

1. **Claim and named evidence:** Model solution: Articles 298 and 299 separate capacity from valid commitment . Article 298 permits the **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Union and States to trade, hold or dispose of property and make contracts, subject to constitutional **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation,

regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** competence. Article 299 then requires the contract to be expressed in the President or Governor's **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** name, executed on that behalf and executed by an authorised person in the prescribed manner. These **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** mandatory safeguards authenticate public commitments and protect the exchequer from informal **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** Articles 298 and 299 separate **capacity** from **valid commitment**. Article 298 permits the Union and States to trade, hold or dispose of property and make contracts, subject to constitutional competence. Article 299 then requires the contract to be expressed in the President or Governor's name, executed on that behalf and executed by an authorised person in the prescribed manner. These mandatory safeguards authenticate public commitments and protect the exchequer from informal assurances. Article 299(2) protects the constitutional head and authorised executant from personal liability; it does not immunise the Union or State. If form fails, the purported contract may be unenforceable, but Contract Act section 70 can independently require restitution where government lawfully enjoys a non-gratuitous benefit. Thus public contracting combines executive capacity, formal authority and an anti-unjust-enrichment safety valve.

**Executable exam-length answer / compression plan:** For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

## M2 - 15 marks, 250 words

**Question:** Trace the evolution of sovereign immunity in India and assess the need for reform.

**Demand decoding:** Identify the controlling provisions and remedy, explain the doctrinal movement or mechanism, preserve source distinctions and end with a qualified verdict.

**Model solution:** Article 300 preserves a historical liability baseline but does not define a complete modern tort code. P & O Steam Navigation (1861) supplied the colonial sovereign/non-sovereign distinction. State of Rajasthan v. Vidyawati (1962) accepted liability for ordinary operational negligence, whereas Kasturi Lal v. State of Uttar Pradesh (1964) retained an older immunity for police custody of seized property. N. Nagendra Rao & Co. (1994) later held broad immunity untenable in a welfare State and confined any residue to narrow inalienable functions. Common Cause and State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000) further reinforced rule-of-law accountability. A second remedial line, Rudul Sah v. State of Bihar (1983) and Nilabati Behera v. State of Orissa (1993), authorises public-law compensation for Fundamental-Right violations; it must not be collapsed into private tort damages.

The present case-law mosaic creates uncertainty over function, forum, proof and personal versus institutional responsibility. The Law Commission's 1956 report criticised broad immunity, but India still lacks a comprehensive enacted State-tort code. Reform should define narrow exceptions, ordinary operational liability, rights compensation, defences, contribution by culpable officials, evidence preservation and claims procedure. The objective is neither blanket immunity nor automatic liability, but predictable accountability proportionate to public function and harm.

**Why this earns marks:** It gives a doctrinal timeline, separates remedies and turns criticism into a concrete statutory design.

**How to improve this answer:** Tie each proposed rule to one uncertainty: function, proof, forum, damages or official contribution.

**Compression:** Timeline in four cases -> constitutional tort -> uncertainty -> six-part statute -> balanced verdict.

**Detailed examiner-grade model answer:**

**Introduction and thesis:** Article 300 preserves a historical liability baseline but does not define a complete modern tort code. P & O Steam Navigation (1861) supplied the colonial sovereign/non-sovereign distinction. State of Rajasthan v. Vidyawati (1962) accepted liability for ordinary operational negligence, whereas Kasturi Lal v. State of Uttar Pradesh (1964) retained an older immunity for police custody of seized property. N. Nagendra Rao & Co. (1994) later held broad immunity untenable in a welfare State and confined any residue to narrow inalienable functions. Common Cause and State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000) further reinforced rule-of-law accountability. A second remedial line, Rudul Sah v. State of Bihar (1983) and Nilabati Behera v. State of Orissa (1993), authorises public-law compensation for Fundamental-Rights violations; it must not be collapsed into private tort damages.

The present case-law mosaic creates uncertainty over function, forum, proof and personal versus institutional responsibility. The Law Commission's 1956 report criticised broad immunity, but India still lacks a comprehensive enacted State-tort code. Reform should define narrow exceptions, ordinary operational liability, rights compensation, defences, contribution by culpable officials, evidence preservation and claims procedure. The objective is neither blanket immunity nor automatic liability, but predictable accountability proportionate to public function and harm.

**Analytical body:**

1. **Claim and named evidence:** Model solution: Article 300 preserves a historical liability baseline but does not define a complete modern **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** tort code. P & O Steam Navigation (1861) supplied the colonial sovereign/non-sovereign distinction. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** State of Rajasthan v. Vidyawati (1962) accepted liability for ordinary operational negligence, whereas Kasturi Lal v. State of Uttar Pradesh (1964) retained an **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** older immunity for police custody of seized property. N. Nagendra Rao & Co. (1994) later held broad immunity **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** untenable in a welfare State and confined any residue to narrow inalienable functions. Common Cause **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** Article 300 preserves a historical liability baseline but does not define a complete modern tort code. P & O Steam Navigation (1861) supplied the colonial sovereign/non-sovereign distinction. State of Rajasthan v. Vidyawati (1962) accepted liability for ordinary operational negligence, whereas Kasturi Lal v. State of Uttar Pradesh (1964) retained an older immunity for police custody of seized property. N. Nagendra Rao & Co. (1994) later held broad immunity untenable in a welfare State and confined any residue to narrow inalienable functions. Common Cause and State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000) further reinforced rule-of-law accountability. A second remedial line, Rudul Sah v. State of Bihar (1983) and Nilabati Behera v. State of Orissa (1993), authorises public-law compensation for Fundamental-Rights violations; it must not be collapsed into private tort damages.

The present case-law mosaic creates uncertainty over function, forum, proof and personal versus institutional responsibility. The Law Commission's 1956 report criticised broad immunity, but India still lacks a comprehensive enacted State-tort code. Reform should define narrow exceptions, ordinary operational liability, rights compensation, defences, contribution by culpable officials, evidence preservation and claims procedure. The objective is neither blanket immunity nor automatic liability, but predictable accountability proportionate to public function and harm.

**Executable exam-length answer / compression plan:** For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

### M3 - 15 marks, 250 words

**Question:** Distinguish private tort liability, constitutional tort and judicial review of government action.

**Demand decoding:** Identify the controlling provisions and remedy, explain the doctrinal movement or mechanism, preserve source distinctions and end with a qualified verdict.

**Model solution:** Private tort compensates a civil wrong after proof of duty, breach, causation, damage and applicable defences. Government may be vicariously liable where the wrong falls within the course of employment, but the claimant must establish the ordinary ingredients. Constitutional tort is a public-law remedy under Articles 32 or 226 for serious State violations of Fundamental Rights. *Rudul Sah v. State of Bihar* (1983) and *Nilabati Behera v. State of Orissa* (1993) show that compensation vindicates constitutional rights and is not dependent on Article 300 private-tort doctrine. Judicial review is broader in subject but often different in relief: it controls illegality, jurisdiction, procedural unfairness, arbitrariness and rights defects, for example an unfair blacklisting decision.

The routes may coexist. Unlawful custody can trigger public compensation, criminal or disciplinary action and a private damages suit; an arbitrary procurement order may be quashed while a payment claim proceeds under contract or arbitration. The examiner should therefore identify the wrong, source of duty, required proof, forum and remedy before citing immunity. This route-first method prevents the false claim that one constitutional remedy replaces all civil litigation.

**Why this earns marks:** It compares trigger, ingredients, forum and relief, then demonstrates coexistence through examples.

**How to improve this answer:** Draw a five-column remedy matrix and state which route answers the facts before discussing immunity.

**Compression:** Three definitions -> two coexistence examples -> route-first verdict.

#### Detailed examiner-grade model answer:

**Introduction and thesis:** Private tort compensates a civil wrong after proof of duty, breach, causation, damage and applicable defences. Government may be vicariously liable where the wrong falls within the course of employment, but the claimant must establish the ordinary ingredients. Constitutional tort is a public-law remedy under Articles 32 or 226 for serious State violations of Fundamental Rights. *Rudul Sah v. State of Bihar* (1983) and *Nilabati Behera v. State of Orissa* (1993) show that compensation vindicates constitutional rights and is not dependent on Article 300 private-tort doctrine. Judicial review is broader in subject but often different in relief: it controls illegality, jurisdiction, procedural unfairness, arbitrariness and rights defects, for example an unfair blacklisting decision.

The routes may coexist. Unlawful custody can trigger public compensation, criminal or disciplinary action and a private damages suit; an arbitrary procurement order may be quashed while a payment claim proceeds under contract or arbitration. The examiner should therefore identify the wrong, source of duty, required proof, forum and remedy before citing immunity. This route-first method prevents the false claim that one constitutional remedy replaces all civil litigation.

#### Analytical body:

1. **Claim and named evidence:** Model solution: Private tort compensates a civil wrong after proof of duty, breach, causation, damage and **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

2. **Claim and named evidence:** applicable defences. Government may be vicariously liable where the wrong falls within the course of **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** employment, but the claimant must establish the ordinary ingredients. Constitutional tort is a **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** public-law remedy under Articles 32 or 226 for serious State violations of Fundamental Rights. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Rudul Sah v. State of Bihar (1983) and Nilabati Behera v. State of Orissa (1993) show that compensation vindicates constitutional rights and is not **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** Private tort compensates a civil wrong after proof of duty, breach, causation, damage and applicable defences. Government may be vicariously liable where the wrong falls within the course of employment, but the claimant must establish the ordinary ingredients. Constitutional tort is a public-law remedy under Articles 32 or 226 for serious State violations of Fundamental Rights. Rudul Sah v. State of Bihar (1983) and Nilabati Behera v. State of Orissa (1993) show that compensation vindicates constitutional rights and is not dependent on Article 300 private-tort doctrine. Judicial review is broader in subject but often different in relief: it controls illegality, jurisdiction, procedural unfairness, arbitrariness and rights defects, for example an unfair blacklisting decision.

The routes may coexist. Unlawful custody can trigger public compensation, criminal or disciplinary action and a private damages suit; an arbitrary procurement order may be quashed while a payment claim proceeds under contract or arbitration. The examiner should therefore identify the wrong, source of duty, required proof, forum and remedy before citing immunity. This route-first method prevents the false claim that one constitutional remedy replaces all civil litigation.

**Executable exam-length answer / compression plan:** For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

#### **M4 - 10 marks, 150 words**

**Question:** Explain the constitutional protection of property under Article 300A.

**Demand decoding:** Identify the controlling provisions and remedy, explain the doctrinal movement or mechanism, preserve source distinctions and end with a qualified verdict.

**Model solution:** Article 300A provides that no **person** may be deprived of property except by authority of law. It is a constitutional right outside Part III, neither a Fundamental Right nor merely an ordinary statutory right. K.T. Plantation links lawful deprivation to public purpose and rejects arbitrary, confiscatory or illusory-compensation measures. Vidya Devi condemns forcible executive occupation without lawful acquisition and compensation. In Bimal Kumar Shah (2024), the Supreme Court organised fair acquisition around seven sub-rights: notice, hearing, reasoned decision, public purpose, fair compensation or restitution, efficient process and conclusion. Article 300A does not guarantee a single market-value formula for every acquisition, but it bars unsupported executive seizure and constitutionally defective process. Its modern significance lies in joining legislative authority to procedural fairness and effective restitution.

**Why this earns marks:** It states status, text, three cases, seven safeguards and a precise compensation qualification.

**How to improve this answer:** If space is tight, retain the seven safeguards as a compact numbered chain and one sentence on compensation.

**Compression:** Status -> authority of law -> three cases -> seven safeguards -> qualified verdict.

**Detailed examiner-grade model answer:**

**Introduction and thesis:** Article 300A provides that no **person** may be deprived of property except by authority of law. It is a constitutional right outside Part III, neither a Fundamental Right nor merely an ordinary statutory right. K.T. Plantation links lawful deprivation to public purpose and rejects arbitrary, confiscatory or illusory-compensation measures. Vidya Devi condemns forcible executive occupation without lawful acquisition and compensation. In Bimal Kumar Shah (2024), the Supreme Court organised fair acquisition around seven sub-rights: notice, hearing, reasoned decision, public purpose, fair compensation or restitution, efficient process and conclusion. Article 300A does not guarantee a single market-value formula for every acquisition, but it bars unsupported executive seizure and constitutionally defective process. Its modern significance lies in joining legislative authority to procedural fairness and effective restitution.

**Analytical body:**

1. **Claim and named evidence:** Model solution: Article 300A provides that no person may be deprived of property except by authority of **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** law. It is a constitutional right outside Part III, neither a Fundamental Right nor merely an **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** ordinary statutory right. K.T. Plantation links lawful deprivation to public purpose and rejects **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** arbitrary, confiscatory or illusory-compensation measures. Vidya Devi condemns forcible executive **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** occupation without lawful acquisition and compensation. In Bimal Kumar Shah (2024), the Supreme **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** Article 300A provides that no **person** may be deprived of property except by authority of law. It is a constitutional right outside Part III, neither a Fundamental Right nor merely an ordinary statutory right. K.T. Plantation links lawful deprivation to public purpose and rejects arbitrary, confiscatory or illusory-compensation measures. Vidya Devi condemns forcible executive occupation without lawful acquisition and compensation. In Bimal Kumar Shah (2024), the Supreme Court organised fair acquisition around seven sub-rights: notice, hearing, reasoned decision, public purpose, fair compensation or restitution, efficient process and conclusion. Article 300A does not guarantee a single market-value formula for every acquisition, but it bars unsupported executive seizure and constitutionally defective process. Its modern significance lies in joining legislative authority to procedural fairness and effective restitution.

**Executable exam-length answer / compression plan:** For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named

evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

### M5 - 15 marks, 250 words

**Question:** Examine executive privilege and the right to information in claims concerning State secrets.

**Demand decoding:** Identify the controlling provisions and remedy, explain the doctrinal movement or mechanism, preserve source distinctions and end with a qualified verdict.

**Model solution:** State secrecy is a source-specific, harm-based claim rather than a blanket executive immunity. Bharatiya Sakshya Adhiniyam sections 129 and 130 regulate unpublished State-affairs records and official communications in evidentiary proceedings. Raj Narain rejected absolute privilege and required public-interest scrutiny; S.P. Gupta strengthened open government while preserving document-specific protection where disclosure would injure public interest.

The RTI Act operates in a different setting. Section 8(1)(a) protects specified sovereignty, security, strategic, scientific, economic and foreign-relations interests where prejudicial effect is shown. Section 8(2) permits disclosure when public interest outweighs protected harm, and section 22 overrides inconsistent law, including the Official Secrets Act. An RTI exemption does not conclusively determine evidentiary production, and an official 'confidential' label is not the legal test in either field. A sound decision identifies the exact provision, requested material, probable harm, possibility of severance, public-interest balance, reasons and review. Democratic accountability therefore requires calibrated confidentiality, not secrecy by assertion.

**Why this earns marks:** It maintains the BSA/RTI firewall, uses two cases and provides an executable balancing test.

**How to improve this answer:** Add severability or partial disclosure and identify whether the problem is litigation evidence or an RTI request.

**Compression:** Two BSA sections -> Raj Narain/S.P. Gupta -> RTI 8(1)(a), 8(2), 22 -> seven-step test.

#### Detailed examiner-grade model answer:

**Introduction and thesis:** State secrecy is a source-specific, harm-based claim rather than a blanket executive immunity. Bharatiya Sakshya Adhiniyam sections 129 and 130 regulate unpublished State-affairs records and official communications in evidentiary proceedings. Raj Narain rejected absolute privilege and required public-interest scrutiny; S.P. Gupta strengthened open government while preserving document-specific protection where disclosure would injure public interest.

The RTI Act operates in a different setting. Section 8(1)(a) protects specified sovereignty, security, strategic, scientific, economic and foreign-relations interests where prejudicial effect is shown. Section 8(2) permits disclosure when public interest outweighs protected harm, and section 22 overrides inconsistent law, including the Official Secrets Act. An RTI exemption does not conclusively determine evidentiary production, and an official 'confidential' label is not the legal test in either field. A sound decision identifies the exact provision, requested material, probable harm, possibility of severance, public-interest balance, reasons and review. Democratic accountability therefore requires calibrated confidentiality, not secrecy by assertion.

#### Analytical body:

- 1. Claim and named evidence:** Model solution: State secrecy is a source-specific, harm-based claim rather than a blanket executive **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** immunity. Bharatiya Sakshya Adhiniyam sections 129 and 130 regulate unpublished State-affairs **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** records and official communications in evidentiary proceedings. Raj Narain rejected absolute **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

4. **Claim and named evidence:** privilege and required public-interest scrutiny; S.P. Gupta strengthened open government while **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** preserving document-specific protection where disclosure would injure public interest. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** State secrecy is a source-specific, harm-based claim rather than a blanket executive immunity. Bharatiya Sakshya Adhiniyam sections 129 and 130 regulate unpublished State-affairs records and official communications in evidentiary proceedings. Raj Narain rejected absolute privilege and required public-interest scrutiny; S.P. Gupta strengthened open government while preserving document-specific protection where disclosure would injure public interest.

The RTI Act operates in a different setting. Section 8(1)(a) protects specified sovereignty, security, strategic, scientific, economic and foreign-relations interests where prejudicial effect is shown. Section 8(2) permits disclosure when public interest outweighs protected harm, and section 22 overrides inconsistent law, including the Official Secrets Act. An RTI exemption does not conclusively determine evidentiary production, and an official 'confidential' label is not the legal test in either field. A sound decision identifies the exact provision, requested material, probable harm, possibility of severance, public-interest balance, reasons and review. Democratic accountability therefore requires calibrated confidentiality, not secrecy by assertion.

**Executable exam-length answer / compression plan:** For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

#### **M6 - 15 marks, 250 words**

**Question:** Government legal personality enables administration but also structures accountability. Discuss.

**Demand decoding:** Identify the controlling provisions and remedy, explain the doctrinal movement or mechanism, preserve source distinctions and end with a qualified verdict.

**Model solution:** Articles 294-300 give government institutional continuity beyond changing office-holders. Articles 294-295 transfer property, rights, liabilities and obligations at constitutional commencement; Article 296 handles escheat, lapse and bona vacantia; Article 297 vests specified maritime resources in the Union. Article 298 supplies executive capacity to trade, hold property and contract. Articles 299 and 300 then discipline that capacity through mandatory contract form and named suability as the Union of India or the State.

This architecture separates public obligations from the personal estates of the President, Governor or authorised official. Yet separation is not immunity. Contractual liability, section 70 restitution, private tort, public-law compensation and judicial review remain available through their respective ingredients. CPC sections 79-80 organise party description and notice rather than abolishing substantive liability. The scheme therefore performs two functions: stable succession for administration and an identifiable legal defendant for citizens. Government under law is neither an ordinary private actor in every respect nor a sovereign beyond remedy.

**Why this earns marks:** It covers the whole constitutional sequence and links legal personality to both continuity and remedies.

**How to improve this answer:** Use a left-right diagram: capacity/continuity versus form/suability/review, then reconcile them.

**Compression:** 294-297 property -> 298 capacity -> 299 form -> 300 suability -> remedy portfolio -> verdict.

**Detailed examiner-grade model answer:**

**Introduction and thesis:** Articles 294-300 give government institutional continuity beyond changing office-holders. Articles 294-295 transfer property, rights, liabilities and obligations at constitutional commencement; Article 296 handles escheat, lapse and bona vacantia; Article 297 vests specified maritime resources in the Union. Article 298 supplies executive capacity to trade, hold property and contract. Articles 299 and 300 then discipline that capacity through mandatory contract form and named suability as the Union of India or the State.

This architecture separates public obligations from the personal estates of the President, Governor or authorised official. Yet separation is not immunity. Contractual liability, section 70 restitution, private tort, public-law compensation and judicial review remain available through their respective ingredients. CPC sections 79-80 organise party description and notice rather than abolishing substantive liability. The scheme therefore performs two functions: stable succession for administration and an identifiable legal defendant for citizens. Government under law is neither an ordinary private actor in every respect nor a sovereign beyond remedy.

#### **Analytical body:**

1. **Claim and named evidence:** Model solution: Articles 294-300 give government institutional continuity beyond changing office-holders. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Articles 294-295 transfer property, rights, liabilities and obligations at constitutional commencement. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Article 296 handles escheat, lapse and bona vacantia; Article 297 vests specified maritime resources in the Union. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Article 298 supplies executive capacity to trade, hold property and contract. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Articles 299 and 300 then discipline that capacity through mandatory contract form. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** Articles 294-300 give government institutional continuity beyond changing office-holders. Articles 294-295 transfer property, rights, liabilities and obligations at constitutional commencement; Article 296 handles escheat, lapse and bona vacantia; Article 297 vests specified maritime resources in the Union. Article 298 supplies executive capacity to trade, hold property and contract. Articles 299 and 300 then discipline that capacity through mandatory contract form and named suability as the Union of India or the State.

This architecture separates public obligations from the personal estates of the President, Governor or authorised official. Yet separation is not immunity. Contractual liability, section 70 restitution, private tort, public-law compensation and judicial review remain available through their respective ingredients. CPC sections 79-80 organise party description and notice rather than abolishing substantive liability. The scheme therefore performs two functions: stable succession for administration and an identifiable legal defendant for citizens. Government under law is neither an ordinary private actor in every respect nor a sovereign beyond remedy.

**Executable exam-length answer / compression plan:** For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

## M7 - 10 marks, 150 words

**Question:** Why is procedural notice not the same as sovereign immunity?

**Demand decoding:** Identify the controlling provisions and remedy, explain the doctrinal movement or mechanism, preserve source distinctions and end with a qualified verdict.

**Model solution:** CPC section 80 ordinarily requires two months' notice before specified suits against government or public officers for official acts. It allows the State to examine the claim and consider settlement before litigation. Section 80(2), however, permits a court-controlled route for urgent or immediate relief without prior notice, while protecting the government's opportunity to show cause. The rule therefore regulates **when and how** a suit begins; it does not decide whether government is substantively liable. Sovereign immunity concerns whether a cause of action is barred or limited because of the governmental function. Likewise, Article 361 personal immunity, Article 299(2) contract protection and BNSS section 218 prosecution sanction arise from different sources. A precise answer first establishes the wrong and remedy, then applies the relevant procedural condition.

**Why this earns marks:** It distinguishes procedure from substantive liability and identifies the urgent-relief exception.

**How to improve this answer:** State section 80's settlement rationale but avoid describing notice as jurisdictional immunity.

**Compression:** Purpose -> 80(1) -> 80(2) -> immunity contrast -> source firewall.

**Detailed examiner-grade model answer:**

**Introduction and thesis:** CPC section 80 ordinarily requires two months' notice before specified suits against government or public officers for official acts. It allows the State to examine the claim and consider settlement before litigation. Section 80(2), however, permits a court-controlled route for urgent or immediate relief without prior notice, while protecting the government's opportunity to show cause. The rule therefore regulates **when and how** a suit begins; it does not decide whether government is substantively liable. Sovereign immunity concerns whether a cause of action is barred or limited because of the governmental function. Likewise, Article 361 personal immunity, Article 299(2) contract protection and BNSS section 218 prosecution sanction arise from different sources. A precise answer first establishes the wrong and remedy, then applies the relevant procedural condition.

**Analytical body:**

1. **Claim and named evidence:** Model solution: CPC section 80 ordinarily requires two months' notice before specified suits against **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** government or public officers for official acts. It allows the State to examine the claim and **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** consider settlement before litigation. Section 80(2), however, permits a court-controlled route **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** for urgent or immediate relief without prior notice, while protecting the government's opportunity **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** to show cause. The rule therefore regulates when and how a suit begins; it does not decide **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** CPC section 80 ordinarily requires two months' notice before specified suits against government or public officers for official acts. It allows the State to examine the claim and consider settlement before litigation. Section 80(2), however, permits a court-controlled route for urgent or immediate relief without prior notice, while protecting the government's opportunity to show cause. The rule therefore regulates **when and how** a suit begins; it does not decide whether government is substantively liable. Sovereign immunity concerns whether a cause of action is barred or limited because of the governmental function. Likewise, Article 361 personal immunity, Article 299(2) contract protection and BNSS section 218 prosecution sanction arise from different sources. A precise answer first establishes the wrong and remedy, then applies the relevant procedural condition.

**Executable exam-length answer / compression plan:** For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

### **M8 - 20 marks, 250 words**

**Question:** Design a coherent framework for government liability in a constitutional welfare State.

**Demand decoding:** Identify the controlling provisions and remedy, explain the doctrinal movement or mechanism, preserve source distinctions and end with a qualified verdict.

**Model solution:** A coherent framework should begin with a remedy map rather than an unstable sovereign label. Valid contracts follow Articles 298-299 and commercial remedies; defective contracts may attract section 70 restitution without validation. Operational civil wrongs require codified tort ingredients and narrow, enumerated exceptions. Serious Fundamental-Right violations retain Articles 32/226 public-law compensation. Property deprivation must satisfy Article 300A's authority of law, public purpose, fair process and non-illusory restitution. Judicial review remains available for illegality, unfair procedure and arbitrariness.

Institutional design should specify the Union/State defendant, limitation and CPC notice, urgent relief, evidence preservation, damages principles, contribution by culpable officials and interaction with disciplinary or criminal proceedings. Immunity, if any, should be function- and harm-specific for narrowly inalienable fields, not attached to a department's label. Procurement needs digital authority trails and reasoned decisions; secrecy claims need provision-specific harm tests, severance and independent review. A claims-screening and settlement system can reduce defensive appeals without suppressing meritorious claims.

The constitutional objective is calibrated responsibility: protect legitimate decision-making and public resources while ensuring that State-created harm has an identified defendant, fair process and effective remedy.

**Why this earns marks:** It integrates contract, tort, rights, property, procedure, secrecy and institutional administration into one design.

**How to improve this answer:** Convert the middle paragraph into a statute-design table headed trigger, defendant, proof, defence, forum and remedy.

**Compression:** Five-route map -> eight statutory design elements -> administrative reforms -> calibrated-responsibility verdict.

### **Detailed examiner-grade model answer:**

**Introduction and thesis:** A coherent framework should begin with a remedy map rather than an unstable sovereign label. Valid contracts follow Articles 298-299 and commercial remedies; defective contracts may attract section 70 restitution without validation. Operational civil wrongs require codified tort ingredients and narrow, enumerated exceptions. Serious Fundamental-Right violations retain Articles 32/226 public-law compensation. Property deprivation must satisfy Article 300A's authority of law, public purpose, fair process and non-illusory restitution. Judicial review remains available for illegality, unfair procedure and arbitrariness.

Institutional design should specify the Union/State defendant, limitation and CPC notice, urgent relief, evidence preservation, damages principles, contribution by culpable officials and interaction with disciplinary or criminal proceedings. Immunity, if any, should be function- and harm-specific for narrowly inalienable fields, not attached to a department's label. Procurement needs digital authority trails and reasoned decisions; secrecy claims need provision-specific harm tests, severance and independent review. A claims-screening and settlement system can reduce defensive appeals without suppressing meritorious claims.

The constitutional objective is calibrated responsibility: protect legitimate decision-making and public resources while ensuring that State-created harm has an identified defendant, fair process and effective remedy.

#### Analytical body:

1. **Claim and named evidence:** Model solution: A coherent framework should begin with a remedy map rather than an unstable sovereign label. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Valid contracts follow Articles 298-299 and commercial remedies; defective contracts may attract **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** section 70 restitution without validation. Operational civil wrongs require codified tort **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** ingredients and narrow, enumerated exceptions. Serious Fundamental-Right violations retain **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Articles 32/226 public-law compensation. Property deprivation must satisfy Article 300A's authority **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

**Counter-position / limit:** Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

**Qualified conclusion:** A coherent framework should begin with a remedy map rather than an unstable sovereign label. Valid contracts follow Articles 298-299 and commercial remedies; defective contracts may attract section 70 restitution without validation. Operational civil wrongs require codified tort ingredients and narrow, enumerated exceptions. Serious Fundamental-Right violations retain Articles 32/226 public-law compensation. Property deprivation must satisfy Article 300A's authority of law, public purpose, fair process and non-illusory restitution. Judicial review remains available for illegality, unfair procedure and arbitrariness.

Institutional design should specify the Union/State defendant, limitation and CPC notice, urgent relief, evidence preservation, damages principles, contribution by culpable officials and interaction with disciplinary or criminal proceedings. Immunity, if any, should be function- and harm-specific for narrowly inalienable fields, not attached to a department's label. Procurement needs digital authority trails and reasoned decisions; secrecy claims need provision-specific harm tests, severance and independent review. A claims-screening and settlement system can reduce defensive appeals without suppressing meritorious claims.

The constitutional objective is calibrated responsibility: protect legitimate decision-making and public resources while ensuring that State-created harm has an identified defendant, fair process and effective remedy.

**Executable exam-length answer / compression plan:** For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.